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► **M1** COUNCIL DECISION (CFSP) 2021/698

of 30 April 2021

on the security of systems and services deployed, operated and used under the Union Space Programme and the Union Secure Connectivity Programme which may affect the security of the Union, and repealing Decision 2014/496/CFSP ◀

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Amended by:

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Council Decision (CFSP) 2023/598 of 14 March 2023

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on the security of systems and services deployed, operated and used under the Union Space Programme and the Union Secure Connectivity Programme which may affect the security of the Union, and repealing Decision 2014/496/CFSP

▼ B*Article 1*

1. This Decision sets out the responsibilities to be exercised by the Council and the High Representative:

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(a) to avert a threat to the security of the Union or of one or more of its Member States or to mitigate serious harm to the essential interests of the Union or of one or more of its Member States arising from the deployment, operation or use of the systems set up and services provided under the components of the Union Space Programme or the Union Secure Connectivity Programme (the ‘Programmes’); or

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(b) in the event of a threat to the operation of any of those systems or the provision of those services.

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2. In the implementation of this Decision, due account shall be given to the differences between the components of the Programmes, in particular as regards Member States’ authority and control over sensors, systems or other capacities relevant to the Programmes.

▼ B*Article 2*

1. In the event of such a threat, the Member States, the Commission, the European Union Agency for the Space Programme (the ‘Agency’) or any security monitoring structure appointed in accordance with Article 34(4) of Regulation (EU) 2021/696 (‘appointed security monitoring structure’), as appropriate, shall immediately inform the High Representative of all the elements at their disposal which they consider relevant.

2. The High Representative shall immediately inform the Council of the threat and of its potential impact on the security of the Union or of one or more of its Member States and on the operation of the systems or the provision of the services concerned.

Article 3

1. The Council, acting unanimously upon a proposal from the High Representative, shall decide on the necessary instructions to the Agency or to any appointed security monitoring structure, as appropriate.

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2. The Agency or the relevant appointed security monitoring structure and the Commission shall provide advice to the High Representative on the likely wider impact on the systems set up and services provided under the components of the Programmes of any instructions which the High Representative intends to propose to the Council pursuant to paragraph 1.

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3. The proposal from the High Representative referred to in paragraph 1 shall include an impact assessment of the proposed instructions.

4. The Political and Security Committee (PSC) shall provide an opinion to the Council on any instructions proposed, as appropriate.

Article 4

1. If the urgency of the situation requires immediate action to be taken before the Council has taken a decision under Article 3(1), the High Representative is authorised to issue the necessary provisional instructions to the Agency or to the relevant appointed security monitoring structure. The High Representative may direct the Secretary-General of the European External Action Service to issue such instructions to the Agency or to the relevant appointed security monitoring structure on the High Representative's behalf.

2. The High Representative shall immediately inform the Council and the Commission of any instructions issued pursuant to paragraph 1.

3. The Council shall confirm, modify or revoke the provisional instructions of the High Representative as soon as possible.

4. The High Representative shall keep those provisional instructions under constant review, amend them as appropriate or revoke them if immediate action is no longer required. In any event, the provisional instructions shall expire four weeks after being issued, or upon a decision by the Council pursuant to paragraph 3.

*Article 5***▼ M1**

1. Within a year after the security configuration of the committee established under Article 107(1)(e) of Regulation (EU) 2021/696 has determined, on the basis of the risk and threat analysis performed by the Commission pursuant to Article 34(2) of Regulation (EU) 2021/696, under the procedure referred to in Article 107(3) thereof, whether a system set up or a service provided, or both, under a particular component of the Programmes is security-sensitive, the High Representative shall prepare, and submit for approval to the PSC, the necessary operational procedures for the practical implementation of the provisions set out in this Decision as regards the system or service concerned, or both. For that purpose, the High Representative shall be supported by experts from Member States, the Commission, the Agency and the relevant appointed security monitoring structure, as appropriate.

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2. The operational procedures referred to in paragraph 1 may include predefined instructions to be implemented by the Agency or any relevant appointed security monitoring structure, as appropriate.

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3. The operational procedures shall be reviewed by the High Representative at least every two years, in particular as a result of a lessons-learned review process following a yearly exercise on the implementation of this Decision, or at the request of a Member State, and shall be submitted to the PSC for approval.

4. The High Representative shall inform the PSC at least once a year on the ongoing activities carried out for the practical implementation of this Decision.

Article 6

1. In accordance with international agreements concluded by the Union or by the Union and its Member States, including those granting access to the public regulated service pursuant to Article 3(5) of Decision No 1104/2011/EU, the High Representative shall have the authority to conclude administrative arrangements with third States concerning cooperation for the purpose of implementing this Decision. Such arrangements shall be subject to approval by the Council acting unanimously.

2. If such arrangements require access to Union classified information, the release or exchange of classified information shall be approved in accordance with the applicable security rules.

Article 7

The Council shall review and, as necessary, amend the rules and procedures set out in this Decision no later than three years from the date of its entry into force, or at the request of a Member State.

Article 8

The Member States shall take the necessary measures to ensure the implementation of this Decision in their respective area of responsibility, in accordance with, inter alia, Article 34(6)(a) of Regulation (EU) 2021/696. For that purpose, the Member States shall designate one or more points of contact to assist in the operational management of a threat. Those points of contact may be natural or legal persons.

Article 9

Decision 2014/496/CFSP is hereby repealed.

The operational procedures developed under Decision 2014/496/CFSP as regards the Galileo system shall remain applicable until they are updated under this Decision.

Article 10

This Decision shall enter into force on the date of its publication in the *Official Journal of the European Union*.

It shall apply from 1 January 2021.